

HOUSE No. 3769

The Commonwealth of Massachusetts

PRESENTED BY:

David M. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to accurate impairment testing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 3769

By Representative Rogers of Cambridge, a petition (accompanied by bill, House, No. 3769) of David M. Rogers relative to testing for operating a motor vehicle while under the influence. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3414 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to accurate impairment testing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 24 (4)(f)(1) of Chapter 90 is hereby amended by inserting the following after the
2 word “decision”:-

3 No driver shall have their driver’s license suspended or be otherwise sanctioned for
4 refusing a test that has not been scientifically proven to indicate a level of personal impairment
5 resulting in inability to safely operate a motor vehicle.